the next wave of leaders

MEMORANDUM of UNDERSTANDING
REAP INC. and Vancouver School District

This agreement is made by and between REAP Inc. and Vancouver School District for the purpose of increasing on-time promotion to the next grade level, graduation rates, academic achievement, school attendance and decreasing behavioral issues of culturally diverse students.

To this end, the Parties are committed to creating and supporting a shared vision, common goals, and a clear communication structure. This agreement is in effect October 1, 2022 through July 1, 2024.

Agreed Scope of Service: (100 hours over 10 months)

- Develop specific restorative practices training and facilitation plan for the Vancouver School District, including school staff and leadership.
- Supporting effective ways of elevating diverse student voice and leadership involvement.
- Work with district and school leadership to support youth voice to build the capacity of schools and districts to be responsive to racially, culturally diverse staff, students, and families.
- Partnering with leadership to deconstruct bad systems or unhealthy school culture and to construct culturally responsive school environments.
- Work with district/school leadership to build the framework for implementing the REAP program model in schools in Fall 2022. This includes prioritizing schools selected, timeline for implementation, number of students served and program deliverables.

REAP Direct Service to Students: (32 hours a week)

- Provide leadership activities, develop meaningful relationships, academic support and to cultivate youth identity as strategic, knowledgeable, and thoughtful leaders for change through Solutions Program
- Provide 1.5 FTE staff whose practices align with the district's equity policy and goals, help improve inclusivity, staff space and leadership programming to improve student voice and experience at Fort Vancouver HS school(s).

GENERAL AGREEMENT

REAP agrees to:

1. Responsible for recruiting and hiring staff to administer programming.
2. REAP staff will complete school district's background check.
3. Deliver program services outlined in this memo of understanding (virtual/in-person). 4 days a week during school and after school hours beginning September 2023.
4. Conduct a school climate assessment.
5. Provide a calendar of out-of-school leadership activities to school.
6. Supply a list of participating students to the schools/district.
7. Provide a REAP staff contact directory.
8. Provide schools/district with program release form for student participants.
9. Schedule monthly meetings with School Administrators or school official to discuss program outcomes.
10. Schedule bi-annual meetings with Superintendent or superintendent designee to discuss program outcomes, State/district policy updates and partnership development.
11. Adhere to all District policies regarding use of buildings, transportation, liability, etc.
12. Work with Vancouver School District on development strategies to sustain and expand REAP throughout the district.

Vancouver School District agrees to:

1. Commit to an initial contract to allow time to develop, implement and evaluate program outcomes and the partnership with the intent to renew the terms for a multiyear contract.
2. ~~Cover the fee for criminal background checks/fingering for initial staffing at a REAP site (Future expenses related to background checks/fingerprinting related~~ to REAP staff turnover will be the responsibility of REAP).
3. Consent to school climate assessment facilitated by REAP Inc. as agreed upon by the district.
4. Provide access to the school sites and space necessary for REAP to perform programming with students (i.e. classrooms, gym, cafeteria, auditorium, etc.).
5. Provide phone line, computer, internet access and mailbox for REAP.
6. Synergy access of academic/behavioral records/files for participating students whose parents have signed a release of information. (~~online &~~ manual).
7. Access to online school classrooms to support the service goals of this MOU.
8. Assist with recruitment of students to enroll in REAP program services.
9. Promote REAP activities/events among students, parents and school community.
10. Inform the REAP staff of relevant school/district policies and procedures.

11. Include the REAP staff in relevant school communications (websites, publications, directories etc.)
12. Be available or have a designee available to meet individually with REAP staff to address specific students and/or issues when the need arises.
13. Cooperate in the collection and distribution of information related to program assessment and required report data between the District and REAP.
14. Designate School Administrators to participate in monthly meetings with REAP staff to discuss program outcomes.
15. Coordinating bi-annual meetings with Superintendent or superintendent designee and REAP staff to discuss program outcomes, state/district policy updates and partnership development.
16. Conduct an annual review with REAP, Inc. to determine potential changes to this MOU, services and rates.
17. ~~District agrees to avoid duplication of services while partnering with REAP as a community-based organization partner for the duration of this agreement.~~
18. Work with REAP on development strategies to sustain and expand REAP program services throughout the district to serve more students and schools.

All program materials provided or developed by REAP within the scope of services outlined in this agreement will remain the property of REAP and used solely for the purpose of this partnership or at the discretion of REAP.

MODIFICATION. Modifications to this MOU shall be made by mutual consent of the parties, by the issuance of a written modification, signed and dated by authorized officials, prior to any changes being performed.

1. TERMINATION. Either party, upon ~~ninety (90)~~ thirty (30) days written notice, may terminate this MOU in whole, or in part, at any time before the date of expiration.

2. NON-FUND OBLIGATING DOCUMENT. This MOU is neither a fiscal nor a funds obligation document. Any endeavor or transfer of anything of value involving reimbursement or contribution of funds between the parties to this agreement will be handled in accordance with applicable laws, regulations, and procedures. Such endeavors will be outlined in separate agreements that shall be made in writing by representatives of the parties and shall be independently authorized by appropriate statutory authority. This agreement does not provide such authority. Each party shall be fiscally responsible for their own portion work performed under the MOU.

3. COMPLIANCE. The parties agree to be bound by applicable state and federal rules governing Equal Employment Opportunity, Non-Discrimination and Immigration.

4. CONFIDENTIALITY. The parties agree to maintain confidentiality of records for each youth and family.

5. INDEMNIFICATION AND HOLD HARMLESS. ~~Subject to any and all limitations, exclusions, and notice requirements of the Oregon Tort claims Act (ORS 30.260 through 30.300) and the constitution of the State of Oregon~~, Each party shall be responsible for their own acts and those of its officers, employees, or agents. The parties agree that they will hold harmless, waive, release, indemnify, defend, and discharge each other from all liability and claims arising from each party's own acts and omissions. The parties agree to this defense and indemnification to the fullest extent allowed by law, which includes liability and claims arising from negligent acts or omissions. Each party agrees to have adequate general liability coverage to cover any tort claim that could arise from this agreement including coverage for sexual molestation and injuries to the head and brain.

Superintendent, Vancouver School District Date

Executive Staff, REAP Inc. Date

Exhibit A

Reporting & Billing Terms

1. **Performance Period:** This contract runs from **October 1, 2022** through **July 1, 2024**.

Mid-Year & Final Report will include:

- Professional Learning Outcomes
- Engagement of and responsiveness to racially & culturally diverse students
- Academic & behavior outcomes
- Summary of program highlights & challenges
- Narrative of success stories

2. Billing: The total amount of the contract is $205,000. REAP Inc. will invoice the District $20,500 on October 1, 2022 to cover initial planning and program development. Thereafter, REAP will invoice the District on the 1st of each month equal payments of the remaining balance.

COVID-19 Termination. The District may terminate this Agreement immediately and without notice if it is found that the Contractor has failed to follow any regulations, orders, or guidance as provided by the CDC and federal, state, and local governments.

Force Majeure. Neither the District nor Contractor shall be responsible for delay, default, or termination of contract caused by any contingency beyond their control, including, but not limited to war or insurrection (whether declared or not); plague, epidemic, pandemic, outbreaks of infectious disease or any other public health crisis, including, but not limited to quarantine or other restrictions as directed by state or federal government; compliance with any law or governmental order, rule, regulation or direction; strikes or lockouts by the Parties' own employees; walkouts by the Parties' own employees; fires; natural calamities; riots; or requirements of governmental agencies.

Sexual Conduct and Abuse Provision. Contractor acknowledges District's obligations related to abuse and sexual conduct. If there are reports or allegations of sexual conduct or abuse involving one of Contractor's employees, Contractor agrees to immediately remove that employee from providing services to the District. Contractor will follow the District's requests for removal of such employees following a report or allegation. Contractor will cooperate in any investigation being conducted by District, law enforcement, DHS, ODE and/or TSPC. Contractor has received information regarding abuse and sexual conduct and District will provide current information to Contractor on an annual basis. Contractor will provide information necessary for the district to perform background checks on any employee who may have direct, unsupervised contact with students, in accordance with state law and district policy. All of Contractor's employees who may have direct, unsupervised contact with students, will complete the District's sexual conduct and child abuse training program prior to having direct, unsupervised contact with students.

Choice of Law Provision. This Agreement shall be construed and enforced in accordance with the laws of the State of Washington.